TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JULY 27, 2026
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Cheryll Woods-Flowers, Joan Spier.
Absent: Brian Stress.
Staff: Matt Simms, Lynnette Lynes

Mr. Wood called the meeting to order at 6 pm.

A. Approval of Agenda

Ms. Woods-Flowers moved for approval. Mr. Branch seconded the motion. All in favor.

B. Approval of Minutes

Ms. Spier moved for approval. Ms. Stevens seconded the motion. All in favor.

C. Public Comment

There being no comments, Mr. Wood continued with the agenda.

D. General Correspondence

1. **Case S-01-24,** 210 West Coleman Boulevard, TMS# 517-00-00-042, Request for an extension of the vested rights period in accordance with Chapter 151.

Mr. Wood asked if they were any changes preventing approval. Mr. Simms answered in the negative.

Mr. Branch moved for approval of the vested rights extension. Ms. Woods-Flowers seconded the motion. All in favor.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wood reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-14-26**, 843 Bridge Point Circle, TMS# 514-13-00-146, Request relief from the strict application of the standards in Table §156.039-1 R2 Dimensional Standards to allow a ten-foot (10') rear yard setback for a new detached house. The ordinance requires a twenty-five-foot (25') rear yard setback. Additionally, request relief from the strict application of §156.622(C)(1) to allow a critical area buffer width of ten feet (10'). The ordinance requires a minimum buffer width of twenty feet (20') and an average buffer width of thirty-five feet (35'). Correspondence

- Mr. Simms reviewed staff comments with the Board.

- Ms. Liz Stanton, architect, reviewed the request with the Board.

Mr. Wood asked who the applicant is. Ms. Stanton answered that she is representing the current owner.

- Ms. Woods-Flowers asked the size of the home. Mr. Simms answered that it should have been included in the application.

- Mr. Wood asked if this is the same footprint that was presented last month. Ms. Stanton answered in the affirmative.

- Ms. Spier asked if the second floor would have the same square footage. Ms. Stanton answered in the affirmative. Ms. Spier asked the allowed height. Mr. Simms answered that it is allowed 40 foot maximum height. Ms. Spier asked about the surrounding homes and if they were within the 25 foot front setback. Ms. Stanton referred to page ten of the exhibit showing the front setbacks. Ms. Spier asked if the property for sale. Ms. Stanton answered in the affirmative. Mr. Wood asked if the sell is contingent on getting the variance. Ms. Stanton answered in the negative and stated that the sale is on hold and the lot is not sellable unless the variance is granted.

- Mr. Barrow asked the minimum square footage. Ms. Stanton answered that it is 2200 square feet (sf). Mr. Barrow asked if a 2200 sf house could be built without a variance. Ms. Stanton answered in the negative. Mr. Barrow asked the minimum setback variance needed. Ms. Stanton answered that she is not sure.

- Ms. Spier suggested that the critical line variance is set, but the setback would be needed. Ms. Stanton answered in the affirmative. Ms. Spier asked if the HOA requires the 2200 sf home. Ms. Stanton answered in the affirmative.

- Mr. Branch asked for clarification on the two variances being requested. Ms. Stanton answered that it is for critical line and rear setback. She stated that the request is for ten feet from the sea wall. Mr. Branch asked the reason for not having the information requested. Ms. Stanton answered that the owner desires to have a larger home.

- Ms. Stevens suggested that the surrounding homes are larger than 2200 sf. Ms. Stanton concurred.

- There being no further comments, Mr. Wood closed public comment.

- Mr. Branch suggested that the request meets the variance criteria. Ms. Stevens concurred.

- Ms. Spier suggested that she is amenable to the critical line variance but is having difficulty with the setback request.

- Mr. Barrow stated that all the required criteria must be met to grant a variance. He suggested that the request does not meet the third criteria as there is no prohibition of the use of the property. He suggested that a smaller home could potentially be built on this property. He suggested that wanting a variance to build a larger home is a violation of the Board's duty.

- *Mr. Barrow moved for denial of the variance as it does not meet all the required criteria, particularly because there is no prohibition of the utilization of the property if the variance is not granted. Ms. Spier seconded the motion. Motion failed on a 3 to 3 vote with Mr. Barrow, Ms. Spier, and Mr. Wood in favor; Ms. Woods-Flowers, Mr. Branch, and Ms. Stevens opposed.*

- Being a tie vote, the matter was deferred to the next meeting.

2. **Case V-16-26**, 1129 Sea Island Crossing Lane, TMS# 532-03-00-120, Request for relief from the strict application of the standards in Table §156.424-1, Setbacks and Height for Accessory Uses and Structures, to allow a detached

garage with a proposed four (4) foot side yard setback. The ordinance requires a minimum six (6) foot side yard setback for accessory buildings.

- Mr. Simms reviewed staff comments with the Board.

- Mr. Rich Klein, owner, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- Mr. Wood asked how this request meets the criteria, specifically prohibition of the utilization of the property. Mr. Klein answered that the garage allows better, safer parking of their vehicles. Mr. Wood asked if the property cannot be utilized. Mr. Klein answered in the negative.

- Mr. Barrow answered that the criteria outlined in the State Law stipulate that the four criteria must be met to approve a variance. He suggested that because the property is currently being utilized, or lived in, there is no prohibition of the utilization of the property. He stated that the Board is bound by the law and cannot deviate. He asked if a garage could be built without needing a variance.

Mr. Wood closed public comment.

- *Mr. Branch moved for denial based on the findings that the request does not meet the required criteria for a variance, particularly that the property has similar conditions that apply to other properties in the vicinity. Ms. Stevens seconded the motion. All in favor.*

There being no further business, the meeting adjourned at 6:42 pm.

Submitted by,
L. Lynes
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